

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased: \_\_\_\_\_

-----X  
JAMARE GRAHAM,

Plaintiff,

-against-

Plaintiff designates

**BRONX** County as the place of trial

THE CITY OF NEW YORK, MICHAEL WHELAN SGT.  
OF FIREARMS SUPPRESSION, SHIELD #027703, TAX  
ID #948440, OTHER CITY OF NEW YORK POLICE  
OFFICERS INVOLVED IN ARREST #B16603615,  
WHOSE NAMES ARE NOT KNOWN AT THIS TIME  
N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE  
INCIDENT THAT AROSE ON FEBRUARY 10, 2016,  
AND NO OTHER DATE,

The basis of the venue is where the  
tort arose and where plaintiff resides

**SUMMONS**

Plaintiff resides at

**JAMARE GRAHAM**  
655 E. 233<sup>rd</sup> Street  
Bronx, NY 10466

Defendants.  
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**TO THE ABOVE-NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
February 8, 2019

  
\_\_\_\_\_  
**SIM & DEPAOLA, LLP**

**BY: Peter Sim, Esq.**

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

Defendants' Addresses:

**CORPORATION COUNSEL OF NEW YORK**

100 Church Street  
New York, NY 10007

**MICHAEL WHELAN SGT. OF FIREARMS SUPPRESIONS**

**SHIELD #027703, TAX ID #948440**

One Police Plaza  
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
JAMARE GRAHAM,**VERIFIED  
COMPLAINT**

Plaintiff,

-against-

Index No.:

THE CITY OF NEW YORK, MICHAEL WHELAN SGT.  
OF FIREARMS SUPPRESSION, SHIELD #027703, TAX  
ID #948440, OTHER CITY OF NEW YORK POLICE  
OFFICERS INVOLVED IN ARREST #B16603615,  
WHOSE NAMES ARE NOT KNOWN AT THIS TIME  
N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO  
THE INCIDENT THAT AROSE ON FEBRUARY 10,  
2016, AND NO OTHER DATE,

Defendants.  
-----X

Plaintiff, Jamare Graham, by his attorneys, Sim & DePaola, LLP, for his complaint  
against the above Defendants, alleges as follows:

1. The claim arises from a February 10, 2016 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Graham. Mr. Graham was subsequently prosecuted and charged with one (1) count of Criminal Possession of a Controlled Substance in the seventh degree, two (2) counts of Criminal Possession of Marijuana, and one (1) count of Unlawful Possession of Marijuana. As a result, Mr. Graham was deprived of his liberty and suffered physical injuries. Mr. Graham was wrongfully incarcerated for three (3) days or approximately fifty (50) hours, until Mr. Graham was released on or about February 12, 2016 at about 5:00 P.M.

**PARTIES**

2. Plaintiff Jamare Graham ("Mr. Graham") resides in 655 E. 233<sup>rd</sup> Street, Apt. 12, County of Bronx, State of New York.
3. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
4. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
5. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
6. Defendant Sergeant Michael Whelan ("Whelan") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Whelan was, at the time relevant herein, a Police Sergeant under Tax Reg. No. 948440 in the 47<sup>th</sup> precinct, located at 4111 Laconia Ave, Bronx County, NY 10466. Defendant Whelan is sued in his individual and official capacities.
7. At all times relevant Defendants John and Jane Doe I-IV were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe I-IV but is within knowledge of the defendants.

8. At all times relevant herein, Defendants John and Jane Doe I-IV were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe I-IV are sued in their individual and official capacities.
9. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
10. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
11. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
12. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
13. This action has been commenced within one year and ninety days from the relevant accrual dates.

#### **FACTUAL CHARGES**

14. On February 10, 2016 at approximately 4:15 P.M., Plaintiff was in the vicinity of 715 East 224<sup>th</sup> Street, County of Bronx, State of New York.
15. On said date Plaintiff was visiting a friend at 715 East 224<sup>th</sup> Street.
16. Officers from New York Police Department (hereinafter "NYPD") illegally entered said location without a search warrant or other legal reason to enter said private property.
17. NYPD officers illegally entered said location with their guns drawn.
18. NYPD officers then illegally searched said location without a legal reason to do so.

19. NYPD officers, including NYPD officer Michael Whelan of the 47<sup>th</sup> NYPD precinct, shield # 027703 illegally searched and seized Mr. Graham even though there was no probable cause to do so.
20. Plaintiff was falsely arrested under arrest number B16603615.
21. NYPD officers confiscated Plaintiff's money, in the amount of seventeen hundred dollars (\$1,700) and failed to return it to Plaintiff.
22. Police Officer Whelan was the arresting officer in said arrest.
23. Police Officer Whelan falsely arrested Plaintiff claiming he was in criminal possession of marijuana and crack/cocaine.
24. Plaintiff was never in actual, constructive or statutory possession of any contraband.
25. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight.
26. Plaintiff did not commit any crimes or violations of the law.
27. Defendants, including Whelan, intentionally provided false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Graham.
28. Defendant Whelan was Mr. Graham's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Graham of Criminal Possession of a Controlled Substance in the seventh degree and other related charges, which Whelan knew to be untrue.
29. Mr. Graham was arraigned and formally charged with one (1) count of Criminal Possession of a Controlled Substance in the seventh degree, two (2) counts of

Criminal Possession of Marijuana, and one (1) count of Unlawful Possession of Marijuana.

30. At no point did the Defendants, including Whelan, ever observe Mr. Graham commit any crime or offense.
31. At no point were the defendants, including Whelan, ever told by any witnesses that Mr. Graham committed any crime or violation of the law.
32. Ms. Matos was released on February 12, 2016 from Bronx Central Booking.
33. The defendants, including Whelan, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Graham.
34. Defendants, including Whelan, never possessed probable cause to believe a prosecution would succeed against Plaintiff or that Plaintiff was guilty of any crime.
35. While Plaintiff was in central booking, Defendants, including Whelan, acting with malice, conveyed false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Possession of a Controlled Substance in the seventh degree and other related charges.
36. Defendants, including Whelan, suppressed evidence and engaged in conduct undertaken in bad faith.
37. Plaintiff was incarcerated for approximately three (3) days until he was released on or about February 12, 2016.
38. During all of the events described, the Defendants, including Whelan, acted maliciously and with intent to injure Plaintiff.

39. At all times relevant hereto, Defendants, including Whelan, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
40. At all times relevant hereto, Defendants, including Whelan, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
41. As a direct and proximate result of the acts of Whelan, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
New York State Law

42. The above paragraphs are here incorporated by reference as though fully set forth.
43. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
44. Plaintiff was conscious of his confinement.
45. Plaintiff did not consent to his confinement.
46. Plaintiff's arrest and false imprisonment was not otherwise privileged.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.



48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

52. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

53. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

55. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**

Assault and Battery Under  
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth.
57. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
58. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without him consent.
59. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
60. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
64. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTH CAUSE OF ACTION****Malicious Prosecution Under  
New York State Law**

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. Defendants initiated the prosecution against Plaintiff.
69. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
70. Defendants acted with malice.
71. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
72. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
73. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION****Malicious Prosecution Under  
42 U.S.C. § 1983 Against Individual Defendants**

74. The above paragraphs are here incorporated by reference as though fully set forth.
75. Defendants initiated the prosecution against Plaintiff.
76. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
77. Defendants acted with malice.

78. The prosecution was terminated in Plaintiff's favor when he was acquitted of all criminal charges after trial.
79. Defendants violated Plaintiff's Fourth Amendment rights by causing Plaintiff to remain incarcerated against his will after his arraignment.
80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
81. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION**

Failure to Intervene Under  
New York State Law

82. The above paragraphs are here incorporated by reference as though fully set forth.
83. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
84. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
85. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**EIGHTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. Those Defendants that were present but did not actively participate in the  
aforementioned unlawful conduct observed such conduct, had an opportunity to  
prevent such conduct, had a duty to intervene and prevent such conduct and failed to  
intervene.
89. Accordingly, the Defendants who failed to intervene violated the Fourth and  
Fourteenth Amendments.
90. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the  
damages hereinbefore alleged.
91. By reason of the above, the amount of damages sought on this cause of action exceeds  
the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**NINETH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Defendants arrested, detained, coerced, subjected to undue duress and persuaded the  
District Attorney's Office to initiate a criminal prosecution.
94. Defendants had no excuse or justification to forcibly detain and question Plaintiff,  
especially with the absence of any cognizable probable cause.
95. Defendants intended to inflict substantial harm upon Plaintiff.

96. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

98. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TENTH CAUSE OF ACTION**  
Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

99. The above paragraphs are here incorporated by reference as though fully set forth.

100. Defendants arrested, detained, and persuaded the District Attorney's Office to initiate a criminal prosecution.

101. Defendants had no excuse or justification to further detain and question Plaintiff, especially with the absence of any cognizable probable cause.

102. Defendants intended to inflict substantial harm upon Plaintiff.

103. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizure, as well as his right not to be deprived of his liberty without due process of law.

104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

105. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**ELEVENTH CAUSE OF ACTION**  
**Negligent Hiring, Retention and Supervision Under**  
**New York State Law**

106. The above paragraphs are here incorporated by reference as though fully set forth.
107. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
108. Defendant City breached that duty of care.
109. Defendant City placed defendants in a position where they could inflict foreseeable harm.
110. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
111. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
113. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

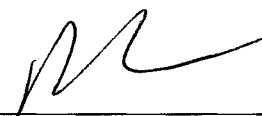
**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;



- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- m) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- n) Together with the costs and disbursements of this action

Dated: Bayside, New York  
February 8, 2019



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PETER SIM.  
SIM & DEPAOLA, LLP  
Attorney for Plaintiff  
4240 Bell Blvd., Suite 500  
Bayside, NY 11361  
T: (718) 281-0400  
F: (718) 631-2700

**ATTORNEY VERIFICATION**

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
February 8, 2019

  
\_\_\_\_\_  
**PETER SIM, ESQ.**

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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JAMARE GRAHAM,

Plaintiff,

-against-

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FEBRUARY 10, 2016, AND NO OTHER DATE,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**

BY: Samuel C. DePaola

Attorney for Plaintiff(s)

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-4000

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To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for